

22CV46224 - LAWRENCE J. SARKIS

Plaintiff/Cross-Defendant

v.

ANGELS GUN CLUB; DAVID VERHALEN

Defendants/Cross-Complainants

DEFENDANT'S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING

Before the Court is a motion for summary judgment filed by Defendant/Cross-Complainant Angels Gun Club, Inc ("AGC") and David Verhalen (collectively "Defendants") against Plaintiff/Cross-Defendant Lawrence J. Sarkis ("Plaintiff") as to Plaintiff's Complaint.

As set forth below, the Court denies the motion for summary adjudication. The Court grants Plaintiff's unopposed Request for Judicial Notice.

I. Factual Background

On December 13, 2021, Plaintiff, AGC, David Richards ("Richards"), Kathleen Bachelor, and each of AGC's then acting board members executed a Settlement Agreement and Mutual Release of All Claims to settle previous litigation initiated by Sarkis against AGC ("Agreement.") (Declaration of Makayla A. Whitney ("Whitney Decl.") ¶ 2.) The previous litigation stemmed from Plaintiff's alleged wrongful expulsion from AGC and claims of mismanagement by AGC's board of directors. (Declaration of Lawrence Sarkis ("Sarkis Decl.") ¶ 2.)

The Agreement that is the subject of this action contains Clause 3(i) which states:

In further consideration of this Agreement, AGC will provide copies of the following documents to Plaintiff Richards or another AGC member designated by Plaintiff Richards upon written request of such member for five (5) years following the Effective Date: annual profit & loss statements, annual revenue reports and annual expense reports.

(Plaintiff UMF ("PUMF") 1.) As part of the Agreement, Plaintiff would no longer be a member of AGC. (PUMF 2.) Further, in compliance with the Agreement, Plaintiff dismissed his court cases against AGC (PUMF 10), relinquished his claim to be reinstated as a member of AGC (PUMF 11) and has not reapplied for membership in AGC (PUMF 12.)

On October 17, 2023, Plaintiff filed a First Amended Complaint (“FAC”) in this matter alleging claims for breach of contract, false promise, negligent and intentional misrepresentation and breach of the implied covenant of good faith and fair dealing. Central to Plaintiff’s causes of action is his allegation that the Agreement requires AGC to produce “annual profit & loss statements, annual revenue reports, and annual expense reports” (“Reports”) to Richards for a period of five years. (FAC ¶11.) Plaintiff alleges that not only were the Reports not produced, but that AGC knew when it entered the Agreement that it could not produce the types of reports for which Plaintiff bargained. (FAC ¶ 24.)

Now before the Court is AGC’s motion for summary adjudication on the claims of false promise and misrepresentation.

II. Legal Standard

Summary adjudication is proper when there are no triable issues of material fact, and the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc., § 437c(c).)

Defendant has the initial burden to show Plaintiffs’ claims have no merit by showing either (1) that one or more elements of each cause of action cannot be established or (2) there is a complete defense to the claims. (Code Civ. Proc., § 437c(p)(2); see also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849-850.) If Defendant meets that burden, then the burden shifts to Plaintiffs to show that a triable issue of material fact exists as to the element or defense at issue. (*Ibid.*) In ruling on a motion for summary judgment, the court must view the evidence in the light most favorable to the opposing party. (*Aguilar, supra*, 25 Cal.4th at p. 843.)

The moving party bears the burden of persuasion that there is no triable issue of material fact and that she is entitled to adjudication as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Summary adjudication is granted when a moving party establishes the absence of a triable issue of material fact and the right to entry of judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).)

III. Discussion

A. Procedural Deficiencies

If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts. (Cal. Rule of Court 3.1350.)